EXEGTES

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Extracted Text

EXEGTES, (form of cfayyama, "I explain,") among the information, portion learned in the law, whom the judges told to couldnt capital cuefufe.

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Execution ‖ Exemplar.

a criminal, ſo reviving, was not allowed to take ſanctuary and abjure the realm; but his fleeing to ſanctuary was held an eſcape in the officer.

EXECUTION, in the law of Scotland. See LAW *Index*.

EXECUTION, in the French muſic, is uſed to denote the manner of ſinging, or of the performance of a ſong. "As to the manner of ſinging, called in France *execution*, no nation may, with any probability diſpute it with the French. If the French, by their commerce with the Italians have gained a bolder compoſition, the Italians have made their advantage of the French, in learning of them a more polite, moving, and exquiſite execution." St Evremond.

EXECUTIVE POWER. The ſupreme executive power of theſe kingdoms is veſted by our laws in a ſingle perſon, the king or queen for the time being. See the article KING.

The executive power, in this ſtate, hath a right to a negative in parliament, i. e. to refuſe aſſent to any acts offered; otherwiſe the two other branches of legiſlative power would, or might, become deſpotic.

EXECUTOR, a perſon nominated by a teſtator, to take care to ſee his will and teſtament executed or performed, and his effects diſpoſed of according to the tenor of the will. See LAW.

EXECUTOR, in *Scots Law*, ſignifies either the perſon entitled to ſucceed to the moveable eſtate of one deceaſed, or who by law or ſpecial appointment is intruſted with the adminiſtration of it.

EXECUTORY, in *Law*, is where an eſtate in fee, that is, made by deed or fine, is to be executed afterwards by entry, livery, or writ. Leaſe for years, annuities, conditions, &c. are termed *inheritances executory*.

EXECUTRY, in *Scots Law*, is the moveable eſtate falling to the executor. Under executry, or moveables, is comprehended every thing that moves itſelf, or can be moved; ſuch as corns, cattle, furniture, ready money, &c.

EXEDRÆ, in antiquity, denoted halls with many ſeats, where the philoſophers, rhetoricians, and men of learning, met for diſcourſe and diſputation. The word occurs in eccleſiaſtical writers as a general name for ſuch buildings as were diſtinct from the main body of the churches, and yet within the limits of the church taken in its largeſt ſenſe. Among the exedræ the chief was the BAPTISTERY.

EXEGESIS, a diſcourſe by way of explanation or comment upon any ſubject. In the Scotch univerſities, there is an exerciſe among the ſtudents in divinity, called an *exegeſis*, in which a queſtion is ſtated by the reſpondent, who is then oppoſed by two or three other ſtudents in their turns; during which time the profeſſor moderates, and ſolves the difficulties which the reſpondent cannot overcome.

EXEGETES, (formed of ἐξηγέομαι, "I explain,") among the Athenians, perſons learned in the laws, whom the judges uſed to conſult in capital cauſes.

EXEGETICA, in *Algebra*, the art of finding, either in numbers or lines, the roots of the equation of a problem, according as the problem is either numerical or geometrical.

EXEMPLAR, a model, or original, to be imitated, or copied. See MODEL.

EXEMPLAR alſo denotes the idea, or image, conceived or formed in the mind of the artiſt, whereby he conducts his work. Such is the idea of Cæſar, which a painter has in his mind when he goes to make a picture of Cæſar.

Exemplification ‖ Exerciſe.

EXEMPLIFICATION *of Letters Patent*, denotes an examplar, or copy of letters patent, made from the enrolment thereof, and ſealed with the great ſeal of England. Such exemplifications are as effectual to be ſhowed or pleaded, as the letters patent themſelves.

EXEMPTION, in *Law*, a privilege to be free from ſome ſervice or appearance: thus, barons and peers of the realm are, on account of their dignity, exempted from being ſworn upon inqueſts; and knights, clergymen, and others, from appearing at the ſheriff's turn. Perſons of 70 years of age, apothecaries, &c. are alſo by law exempted from ſerving on juries; and juſtices of the peace, attorneys, &c. from pariſh offices.

EXERCISE, among phyſicians, ſuch an agitation of the body as produces ſalutary effects in the animal economy.

Exerciſe may be ſaid to be either active or paſſive. The active is walking, hunting, dancing, playing at bowls, and the like; as alſo ſpeaking, and other labour of the body and mind. The paſſive is riding in a coach, on horſeback, or in any other manner. Exerciſe may be continued to a beginning of wearineſs, and ought to be uſed before dinner in a pure light air; for which reaſon, journeys, and going into the country, contribute greatly to preſerve and re-eſtabliſh health.

Exerciſe increaſes the circulation of the blood, attenuates and divides the fluids, and promotes a regular perſpiration, as well as a due ſecretion of all the humours; for it accelerates the animal ſpirits, and facilitates their diſtribution into all the fibres of the body, ſtrengthens the parts, creates an appetite, and helps digeſtion. Whence it ariſes, that thoſe who accuſtom themſelves to exerciſe are generally very robuſt, and ſeldom ſubject to diſeaſes.

Boerhaave recommends bodily exerciſe in diſeaſes of a weak and lax fibre. By riding on horſeback, ſays his commentator, the pendulous viſcera of the abdomen are ſhaken every moment, and gently rubbed as it were one againſt another, while in the mean time the pure air acts on the lungs with greater force. But it is to be obſerved that a weak man ſhould not ride with a full ſtomach, but either before dinner, or after the digeſtion is nearly finiſhed; for when the ſtomach is diſtended, weak people do not bear theſe concuſſions of the horſe without difficulty; but when the primæ viæ are nearly empty, the remaining feces are diſcharged by this concuſſion. Sailing in a ſhip is alſo an exerciſe of great uſe to weak people. If the veſſel moves with an even motion, by increaſing perſpiration it uſually excites a wonderful alacrity, creates an appetite, and promotes digeſtion. Theſe exerciſes are more eſpecially ſerviceable to weak people; but, in order to ſtrengthen the body by muſcular motion, running and bodily exerciſes are to be uſed. In theſe we ſhould begin with the moſt gentle, ſuch as walking, and increaſe it by degrees till we come to running. Thoſe exerciſes of the body are more eſpecially ſerviceable which give delight to the mind at the ſame time, as tennis, fencing, &c.; for which reaſon, the wiſdom of antiquity appointed rewards for thoſe who excelled in theſe gymnaſtic exerciſes,

Figure 1: *
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